

22NWCV00745 22NWCV00745

County: los-angeles

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#12

PEREZ. v. AMERICAN HONDA MOTOR CO., INC.

CASE NO.: 22NWCV00745

HEARING: Thursday, July
30, 2026, at 9:30 AM

I.

Plaintiff's Motion for Attorney's Fees

is GRANTED in the amount

of \$149,619.00

in attorney's

fees and \$39,343.50 in costs.

II.

Defendant's Motion to Tax Costs is GRANTED in part.

This amount is to be paid by no later than 90 days
from the date of the Court's issuance of this Order. This date may be extended
by agreement of the parties.

Moving Party to give
notice.

Background

The relevant procedural history of this case is as follows: On August 24, 2022, Plaintiff ROCIO PEREZ ("Plaintiff") filed this "lemon law" action against Defendants AMERICAN HONDA MOTOR CO., INC. ("Defendant") and DOES 1 through 10, inclusive. On October 30, 2025, a jury found in favor of Plaintiff.

Plaintiff now move for attorney's fees in the amount of \$200,797.50 with a 1.3 multiplier. Plaintiff also seeks to recoup \$42,461.00 in costs.

Prevailing party

Cal. Civ. Code

§1794(d) states, "[i]f the buyer prevails in an action under [the Song Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

It is undisputed that Plaintiff is the prevailing party in this action and are entitled to reasonable attorney's fees. The only issue pending before this Court is the amount of the award.

Legal Standard

The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) When assessing the amount of any attorneys fee award, courts typically determine what is reasonable through the application of the "lodestar" method. Under the lodestar method, a base amount is calculated from a compilation of (1) time reasonably spent and (2) the reasonable hourly compensation of each attorney. (*Serrano v. Priest* ("Serrano III") (1977) 20 Cal.3d 25, 48); (See also *Meister v. Regents of University of California* (1998) 67 Cal.App.4th 437, 448-449 holding that the lodestar method applies to statutory attorney fees award unless the underlying statute provides for another method of calculation). Normally, a "reasonable" hourly rate is the prevailing rate charged by attorneys of

similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) That amount may then be adjusted through the consideration of various factors, including “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

The Court is vested with discretion to determine which claimed hours were reasonably spent, and what an attorneys reasonable hourly rate is. (Dover Mobile Estates v. Fiber Form Products, Inc. (1990) 220 Cal.App.3d 1494, 1501); (See also Flannery v. California Highway Patrol (1987) 61 Cal.App.4th 629, 644.) [“We readily acknowledge the discretion of the trial judge to determine the value of professional services rendered in his or her court.”].

Attorney's

Fees

Plaintiffs' Counsels' Firm, Knight Law Group, bills at a rate from \$250/hr to \$675/hr. (See Kirnos Decl., ¶128(a)-(l).) A “reasonable” hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexier (2000) 22 Cal.4th 1064, 1095.) Based on Counsel's declaration, the Court reduces Scot Wilson's fee to \$600/hr. The Court finds the remaining rates reasonable.

Next, the Court's determination is undertaken in the exercise of its discretion to determine whether or not rates or hours are reasonable. (Dover Mobile Estates v. Fiber Form Products, Inc. (1990) 220 Cal.App.3d 1494, 1501.)

The Court has carefully reviewed the declarations submitted by counsel. The Court agrees with opposing counsel that a few of Plaintiff's entries are purely clerical and excessive.

Moreover,

based on the non-complexity of this case and the routine nature of lemon law litigation, the Court does not find a multiplier reasonable or necessary.

Apportionment

The Song-Beverly Act claim

comes with a fee-shifting statute under which the present motion has been brought, (CCP § 1794(b),) but common-law fraud claims have no such allowance, (See, Aozora Bank, Ltd. v. 1333 North California Boulevard, (2004), 119 Cal.App.4th 1291, 1294, citing Gray v. Don Miller & Associates, Inc., (1984), 35 Cal.3d 498, 506.)

However, fees not

need to be apportioned when claims arise the same operative facts and are too intertwined to have apportionment be practical. (Santana v. FCA US, LLC, (2020) 56 Cal.App.5th 334, 347.)

Santana inquires into (1) if the two cases really stem from the same operative facts and (2) if so, if there is a practical way to apportion the fees between the causes of action. (Id. at 347-349.)

Defendant argues a “significant

portion of Plaintiff’s attorney’s fees demand include billing related solely to the fraud cause of action.” (Opp. at P. 4:15-16.) The Court does find that Plaintiff’s fraud claim arises from the same operative facts as Plaintiff’s Song-Beverly Act claim. However, Defendant’s Opposition helpfully provides that Plaintiff billed 12.5 related to fraud.

The Court thus reduces

Plaintiff’s attorney fee reward by \$4,683.50.

Costs

“A verified memorandum of costs is prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary.” Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486 (citations and quotations omitted).

“Documentation must be submitted only when a party dissatisfied with the costs claimed in the memorandum challenges them by filing a motion to tax costs.” (Bach v. County of Butte (1989) 215 Cal.App.3d 294, 308.) However, “mere statements in a motion to strike and

attorney declaration are insufficient to rebut the prima facie showing.” (Rojas v. HSBC Card Services Inc. (2023) 93 Cal.App.5th 860, 896.)

In a lemon law action, as here, Civil Code section 1794, subdivision (d) provides that a prevailing buyer “shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses . . . determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

;

Civil Code section 1794, subdivision (d)

“permits the prevailing buyer to recover both ‘costs’ and ‘expenses.’ Examining the language of the statute [citation], it is clear the Legislature intended the word ‘expenses’ to cover items not included in the detailed statutory definition of ‘costs.’” Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137, as modified on denial of reh’g (June 22, 1995). The Legislature included awards of “costs and expenses” in the statute “to cover such out-of-pocket expenses as filing fees, expert witness fees, marshal’s fees, etc.” Id. at 138 (quoting Assem. Com. on Labor, Employment & Consumer Affairs, Analysis of Assem. Bill No. 3374 (May 24, 1978) at 2.)

Item 5: Service of Process Costs

Defendant contends service of process costs for Ocean Honda of Whittier, Norm Reeves, Honda, and Diamond Honda should be stricken. The Court finds these costs were necessary to ensure Plaintiff had all repair documentation. Service of process costs are recoverable. (CCP § 1033.5(a)(4).) Thus, Item 5 will not be stricken.

Item 8: Expert Witness Fees

Defendant contends Plaintiff provided no proof Plaintiff’s expert needed to bill 56 hours in this case. As noted above, expert fees are recoverable in Song-Beverly actions. The Court finds Plaintiff’s attached invoices sufficient to justify expert costs.

Item 11: Models, Enlargements, and Photocopies of

Exhibits

Models, enlargements of exhibits, and photocopies of exhibits are allowable costs under CCP § 1033.5(a)(13). This case went to trial and thus, these costs were reasonably necessary to assist the trier of fact. Thus, these costs are not stricken.

Item 13: Other Costs

Travel Expenses

Travel costs, unless for an authorized witness, are not recoverable per *Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 775-76 ["Routine expenses for local travel by attorneys or other firm employees are not reasonably necessary to the conduct of litigation."].)

Here, the only travel expenses authorized by section 1033.5 are those incurred to attend depositions. (See *Ladas*, supra, 19 Cal.App.4th at 775-76.) Plaintiff contends these costs were necessary for hotels, parking, mileage reimbursement, and food for Mr. Wilson and Ms. Diana to attend trial.

Meal costs are not recoverable. (*Ladas*, supra, 19 Cal.App.4th at 774.) The Court finds that Plaintiff's travel expenses were for convenience and not necessary for litigation.

Thus, Defendant's motion is granted as to \$3,117.50 in travel expenses.

Attorney Services and Messengers for Court Filings

The Court finds Plaintiff's attorney services and messengers fees to be proper.

Indeed, as discussed above, Civil Code §1794(d) permits the recovery of both costs and expenses beyond the statutory costs enumerated in CCP §1033.5. Moreover, Plaintiff submitted Swanson's declaration to support the claimed costs. The Court finds these costs to be

supported and sufficiently related to trial preparation.

Defendant's Motion to Tax Costs is GRANTED in part.

CONCLUSION

Accordingly, the Court grants attorney fees in the reduced, but reasonable, amount of \$149,619.00 and costs of \$39,343.50.